

BC674357 BC674357

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Department: 310

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Case Number: BC674357 Hearing Date: August 13, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: August 13, 2026

Case Name: DONE! Ventures, LLC v. Jamgotchian, et al.

Case No.: BC674357

Matter: Anti-SLAPP Motion

Ruling: The Motion is denied.

Jamgotchian to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

On February 7, 2023, a jury entered verdicts in favor of Plaintiffs DONE! Ventures, LLC ("Done!") and Coastal Laundromat, Inc. ("Coastal"), and against Defendants Jerry Jamgotchian, El Segundo Plaza Associates L.P. ("ESPA"), and Theta Holding IV, Inc. ("Theta") for Plaintiffs' claims for interference with contract, negligent interference with prospective economic advantage, and breach of contract.

On May 8, 2023, the Court entered a "judgment" on the verdict.

On July 12, 2023, the Court ruled on a motion for new trial/JNOV, stating that the amount of punitive damages awarded by the jury was improper and that Coastal was either to stipulate to \$525,000 or else the Court would grant a new trial only as to

the amount of punitive damages. Coastal stipulated to taking less punitive damages.

On September 5, 2023, the Court ruled on Coastal's motion for attorneys' fees and prejudgment interest. Prejudgment interest was rejected, but the Court awarded \$357,673 in fees.

On February 6, 2024, the Court entered a final ruling denying Defendants' motion to tax costs with respect to Done!. That ruling also rejected prejudgment interest for Done!.

On February 27, 2024, the Court entered an "amended judgment", which reduced the amount of punitive damages to be obtained by Done! and indicated the amount of fees, costs, and prejudgment interest to be awarded as discussed above.

On March 27, 2024, the Court denied Defendants' request to amend the February 27, 2024, judgment.

Subsequently, Jamgotchian and his entity Defendants decided to pursue six consolidated appeals. Jamgotchian could not perfect the record on appeal, and so the Court of Appeal dismissed the appeals. Jamgotchian attempted to vacate the dismissals but failed. Then Jamgotchian sought relief before the Supreme Court and failed there too.

On February 17, 2026, Suretec Insurance Company filed a Complaint-in-intervention for interpleader.

On May 15, 2026, Jamgotchian, ESPA, and Theta filed a Cross-Complaint against Suretec Insurance Company and Market Insurance Company.

Suretec now asserts a Special Motion to Strike the entirety of the May 15, 2026, Cross-Complaint, asserting that the Cross-Complaint improperly targets its interpleader action.

Legal Standard

Code of Civil Procedure section 425.16 sets forth the procedure governing anti-SLAPP motions. In pertinent part, the statute states, "A cause of action against a person arising from any act of that person in furtherance of the person's right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim." (Code Civ. Proc. § 425.16(b)(1).) The purpose of the statute is to identify and dispose of lawsuits brought to chill the valid exercise of a litigant's constitutional right of petition or free speech. (Code Civ. Proc. § 425.16(a); *Sylmar Air Conditioning v. Pueblo Contracting Services, Inc.* (2004) 122 Cal.App.4th 1049, 1055-1056.)

Courts employ a two-step process to evaluate anti-SLAPP motions. (*Equilon Enterprises v. Consumer Cause, Inc.* (2002) 29 Cal.4th 53, 61.) To invoke the protections of the statute, the defendant must first show that the challenged lawsuit arises from protected activity, such as an act in furtherance of the right of petition or free speech. (*Ibid.*) From this fact, courts " 'presume the purpose of the action was to chill the defendant's exercise of First Amendment rights. It is then up to the plaintiff to rebut the presumption by showing a reasonable probability of success on the merits.' " (*Ibid.*) In determining whether the plaintiff has carried this burden, the trial court considers "the pleadings, and supporting and opposing affidavits stating the facts upon which the liability or defense is based." (Code Civ. Proc. § 425.16(b)(2); see *Soukup v. Law Offices of Herbert Hafif* (2006) 39 Cal.4th 260, 291 ("*Soukup*").)

Protected Activity

To meet its burden for the first prong of the anti-SLAPP analysis, Suretec must demonstrate that Jamgotchian's causes of action arise from protected activity. That is, it must be that "defendant's conduct by which plaintiff claims to have been injured falls within one of the four categories described in subdivision (e) . . . 'the act underlying the plaintiff's cause' or 'the at which forms the basis for the plaintiff's cause of action' must itself have been an act in furtherance of the right of petition or free speech.' " (Equilon Enterprises v. Consumer Cause, Inc. (2002) 29 Cal.4th 53, 63 (internal citations omitted).)

An " 'act in furtherance of a person's right of petition or free speech under the United States or California Constitution in connection with a public issue' includes: (1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law, (2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law, (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest." (Code Civ. Proc. § 425.16(e).)

Code Civ. Proc. § 425.16(e)(1) relates to statements made before an official proceeding.

Code Civ. Proc. § 425.16(e)(2) relates to statements made in connection with an issue under consideration by a government body. (See *City of Costa Mesa v. D'Alessio Investments LLC* (2013) 214 Cal.App.4th 358, 372-273.) The challenged statements need not be made before an official body, but must "relate[] to the substantive issues in the [underlying] litigation and [must be] directed to persons having some interest in the litigation." (*Neville v. Chudacoff* (2008) 160 Cal.App.4th 1255, 1266.) The defendant need not separately demonstrate that a statement or writing concerned an issue of public significance if it was made in connection with an issue under consideration or review by an official proceeding or body. (*Briggs v. Eden Council for Hope and Opportunity* (1999) 19 Cal.4th 1106, 1113.)

A close examination of the Cross-Complaint shows that the gravamen of each cause of action is Suretec's pre-litigation refusal to return excess collateral upon demand, its alleged breach of the governing Collateral Receipt and Security Agreements (CRSAs), and its failure to provide an accounting after its bonded risk was extinguished. The duties to account for and return excess collateral arise directly from private contractual agreements. Alleged breaches of private contracts and withholding of personal property constitute commercial conduct, not protected petitioning activity.

As alleged, the dispute and improper retention of funds began in January 2026 when demands were made following judgment satisfaction. Suretec's subsequent filing of an interpleader complaint in February 2026 does not retroactively transform its underlying commercial refusal to release excess collateral into protected litigation activity. (*Kajima Engineering & Construction, Inc. v. City of Los Angeles* (2002) 95 Cal.App.4th 921, 930–931 [holding that cross-complaints alleging pre-litigation breaches of duty do not arise from speech or petitioning merely because litigation ensued].) While the act of filing an interpleader complaint is itself protected under CCP § 425.16(e)(1), Cross-Complainants are not seeking damages because Suretec filed an interpleader action. Rather, they seek damages because Suretec allegedly converted excess funds and breached its contract prior to and independent of the court filing.

Suretec failed to meet its burden to show that the Cross-Complaint arises from protected activity. Thus, the Motion is denied.

Jamgotchian to give notice.